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Case Number: 25TRCV02018 Hearing Date: August 18, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 18, 2026

Calendar No.

PROCEEDINGS

Oscar

Orlando Reyes Aguilera v. Jason Morin, et al.

25TRCV02018

1.

G.K. Painting,

Inc.'s Demurrer to First Amended Complaint

2.

G.K. Painting,

Inc.'s Motion to Strike Portions of First Amended Complaint

TENTATIVE RULING

G.K. Painting, Inc.'s Demurrer to First Amended Complaint

is overruled.

G.K. Painting, Inc.'s Motion to Strike Portions of First Amended Complaint is denied.

Background

Plaintiff filed the Complaint on June 20, 2025 and the First Amended Complaint was filed on March 23, 2026. On July 6, 2024, Plaintiff was performing services for Defendants Jason and Jill Morin at their home when Plaintiff fell off a ladder and was injured. Plaintiff was hired by Defendant G.K. Painting. Defendant G.K. Painting did not have workers compensation insurance. Plaintiff alleges the following causes of action: 1. Negligence Pursuant to Labor Code §§ 3700, 3706, and 6403; 2. Premises Liability; 3. General Negligence.

Meet and Confer

Defendant filed a meet and confer declaration in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decl., Khushbu S. Bhavsar).

Request for Judicial Notice

Plaintiff's request for judicial notice is granted pursuant to Evidence Code section 452(d).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians

Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case

"with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.)

"Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer."

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the first through third causes of action for failure to state sufficient facts to state a cause of action and uncertainty.

First Cause of Action for Negligence Pursuant to Labor Code §§ 3700, 3706, and 6403

Defendant's demurrer to the first cause of action is overruled.

Plaintiff states sufficient facts to state a cause of action and the cause of action is not uncertain.

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62.

Lab. Code, § 3700(a) states: "Every employer except the state shall secure the payment of compensation in one or more of the following ways: (a) By being insured against liability to pay compensation by one or more insurers duly authorized to write compensation insurance in this

state.”

Lab. Code, § 3706 states: “If any employer fails to secure the payment of compensation, any injured employee or his dependents may bring an action at law against such employer for damages, as if this division did not apply.”

Lab. Code, § 6403 states:

“No employer shall fail or neglect to do any of the following:

(a) To provide and use safety devices and safeguards reasonably adequate to render the employment and place of employment safe.

(b) To adopt and use methods and processes reasonably adequate to render the employment and place of employment safe.

(c) To do every other thing reasonably necessary to protect the life, safety, and health of employees.”

Lab. Code, § 2750.5 states:

“There is a rebuttable presumption affecting the burden of proof that a worker performing services for which a license is required pursuant to Chapter 9 (commencing with Section 7000) of Division 3 of the Business and Professions Code, or who is performing such services for a person who is required to obtain such a license is an employee rather than an independent contractor. Proof of independent contractor status includes satisfactory proof of these factors:

(a) That the individual has the right to control and discretion as to the manner of performance of the contract for services in that the result of the work and not the means by which it is accomplished is the primary factor bargained for.

(b) That the individual is customarily engaged in an independently established business.

(c) That the individual's independent contractor

status is bona fide and not a subterfuge to avoid employee status. A bona fide independent contractor status is further evidenced by the presence of cumulative factors such as substantial investment other than personal services in the business, holding out to be in business for oneself, bargaining for a contract to complete a specific project for compensation by project rather than by time, control over the time and place the work is performed, supplying the tools or instrumentalities used in the work other than tools and instrumentalities normally and customarily provided by employees, hiring employees, performing work that is not ordinarily in the course of the principal's work, performing work that requires a particular skill, holding a license pursuant to the Business and Professions Code, the intent by the parties that the work relationship is of an independent contractor status, or that the relationship is not severable or terminable at will by the principal but gives rise to an action for breach of contract.

In addition to the factors contained in subdivisions (a), (b), and (c), any person performing any function or activity for which a license is required pursuant to Chapter 9 (commencing with Section 7000) of Division 3 of the Business and Professions Code shall hold a valid contractors' license as a condition of having independent contractor status.

For purposes of workers' compensation law, this presumption is a supplement to the existing statutory definitions of employee and independent contractor, and is not intended to lessen the coverage of employees under Division 4 and Division 5."

"The Workers' Compensation Act (Act) extends only to injuries suffered by an "employee," which arise out of and in the course of his "employment." (§§ 3600, 3700; see Cal. Const., art. XIV, § 4 (former art. XX, § 21).) "Employee[s]" include most persons "in the service of an employer under any ... contract of hire" (§ 3351), but do not include independent contractors. The Act defines an independent contractor as "any person who renders service for a specified recompense for a specified result, under the control of his principal as to the result of his work only and not as to the means by which such result is accomplished." (§ 3353.)" *S. G. Borello & Sons, Inc. v. Department of Industrial Relations* (1989) 48 Cal.3d 341, 349.

Plaintiff alleges that he was an employee of Defendant GK Painting, Inc. and that GK Painting, Inc. was not licensed under Business and Professions Code § 7000 et seq.

Plaintiff alleges the following:

“At the time of the incident on July 6, 2024, Defendant GK PAINTING INC. had registered with the California Contractors State License Board (“CSLB”) as exempt from workers' compensation insurance requirements. However, this exemption was inapplicable because Defendant GK PAINTING INC. employed workers, including Plaintiff, from at least February of 2024. Under Labor Code section 3700 and Business and Professions Code section 7125, the workers' compensation exemption is available only to qualifying sole owner-operators with no employees. By employing Plaintiff and other workers while claiming exempt status, Defendant GK PAINTING INC. failed to secure the payment of workers' compensation insurance as required by Labor Code section 3700.

Defendant GK PAINTING INC. did not obtain workers' compensation insurance until July 8, 2024, two days after Plaintiff's injury on July 6, 2024. Accordingly, no valid workers' compensation policy was in effect on the date of the incident. As a direct consequence of this failure, Defendant GK PAINTING INC.'s contractor's license was suspended by operation of law pursuant to Business and Professions Code section 7125.2, rendering it an unlicensed contractor at the time of the incident.” (FAC, 15-16).

Thus, Plaintiff liability theory is based on two facts - that Plaintiff was an employee of demurring Defendant requiring Defendant to have worker' compensation insurance and that demurring Defendant was not properly licensed. With the original Complaint, these facts were merely conclusions made on information and belief. However, with the First Amended Complaint, Plaintiff has not made these allegations on mere information and belief but instead set forth these statements as facts.

Defendant argues that the cause of action is uncertain as it does not differentiate the various duties between the various Defendants. However, the cause of action is not so uncertain that it renders Defendant unable to respond. The various roles of the parties may be developed through evidentiary facts through the discovery process. In addition, Defendant argues that the cause of action lacks specificity as to the manner in which Defendant breached a duty and/or violated the various statutes referenced in the cause of action. Again, these types of specific facts are not required to plead a cause

of action for negligence.

Thus, for the foregoing reasons, Defendant's demurrer to the first cause of action is overruled.

Second Cause of Action for Premises Liability

Third Cause of Action for Negligence

The demurrer to the second and third causes of action is overruled. Plaintiff states sufficient facts to state the causes of action and the causes of action are not uncertain.

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." *Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 62. The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207 (internal citations and quotations omitted).

Plaintiff alleges sufficient facts to demonstrate that Defendant owed a duty of care, breached a duty, and caused Plaintiff's injuries. (FAC, ¶¶ 36-55). Again, while the allegations in the original Complaint were made on information and belief, now, with the FAC, Plaintiff has alleged facts to meet the elements noted above.

Defendant argues that it does not own the property in question and thus cannot be liable for premises liability. However, factual issues must be adjudicated as to issues of control and ownership. These are issues that cannot be adjudicated with a demurrer. In addition, as to the third cause of action, Defendant is attempting to impose a more specific pleading standard than is necessary to withstand demurrer by arguing that Plaintiff must allege more specific facts as to how and in what manner the ladder was defective. These types of facts will be developed and introduced during the discovery process.

Defendant's demurrer to the second and third causes of

action is overruled.

Motion to
Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading.

CCP § 436(a). The court may also

strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b).

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436.

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendant moves to strike the following allegations:

1. Page 2, Paragraph 7: "Each reference in this complaint to "Defendant," "Defendants," or a specifically named Defendant refers to each of the DOE defendants sued under fictitious names." Grounds for striking such matters: Improper and irrelevant.

2: Page 2, Paragraph 8: "Plaintiff is informed and believes, and based thereon alleges that at all times mentioned herein, Defendant, in all capacities, and DOES 1- 50, owned, controlled, operated, maintained, inspected, repaired, and managed or delegated management duties related to the private property located at 30511 Palos Verdes Dr E, Rancho Palos Verdes, in the State of California." Grounds for striking such matters: Improper and irrelevant.

3: Page 7, Paragraph 35: "The foregoing violations of Labor Code sections 3700, 3706, and 6403 also constitute negligence per se pursuant to Evidence Code section 669. Each violation proximately caused the type of harm the statutes were designed to prevent—workplace injury to an uninsured employee—and Plaintiff, as an uninsured worker injured on the job, is within the class of persons for whose protection those statutes were enacted." Grounds for striking such matters: Improper and irrelevant.

4: Page 10, Prayer for Damages, Paragraph 6: "For a

writ of attachment per Labor Code section 3707." Grounds for striking such matters: Improper and irrelevant.

5: Page 10,

Prayer for Damages, Paragraph 7: "For any and all statutory fees and/or damages." Grounds for striking such matters: Improper and irrelevant." (Notice of Motion, p. ii, line 5 to 27).

Defendant's motion to strike is denied. Defendant has failed to establish that the items sought to be stricken are false, irrelevant, or improper.

As to Items 1 and 2, the allegations are simple allegations identifying the various Defendants as well as setting forth facts of ownership and control of the property. To the extent that Defendant appears to be challenging these allegations, the motion relies on facts outside the scope of the pleadings.

As to Item 3, the allegations simply comply with the Court's order on the demurrer to the original Complaint that allegations of negligence per se may be included within the body of the negligence cause of action and not through a separate cause of action.

As to Item 4, the arguments contending that Plaintiff is not entitled to this remedy rely on factual issues outside the scope of the pleadings.

Finally, as to item 5, the allegation again is simply a general prayer for the availability of recovery of statutory fees and damages.

Defendant's motion to strike is denied.

Defendant is ordered to file and serve an Answer within 10 days of this date.

Plaintiff is ordered to give notice of this ruling.